

Manoj Kumar Sahu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 August 2019 · WRIT - C No. - 24647 of 2019 · **Writ disposed; objections relegated to clause 8.1(b); supply restorable on 50% deposit.**

HEADNOTE

A consumer disconnected in Section 135 proceedings and served with a provisional assessment must pursue objections under clause 8.1(b) of the U.P. Electricity Supply Code, 2005, which occupies that field. The High Court declined to examine the assessment, directed a time-bound speaking final order if objections were filed within three weeks, and permitted restoration of LMV-1 supply on deposit of 50% of the provisional amount of Rs. 1,01,028, subject to the final assessment.

FACTUAL SUMMARY

Manoj Kumar Sahu held an LMV-1 connection (ACID068512420, 3 kW) under U.P. Power Corporation Ltd. The supply was disconnected in proceedings under Section 135 of the Electricity Act, 2003. A provisional assessment of Rs. 1,01,028 dated 2 May 2019 was issued and personally served, inviting objections. He petitioned the Allahabad High Court for a mandamus to the Electricity Engineer, Electricity Distribution Division Ist, to restore the connection. After an adjournment for instructions, the Department placed the assessment papers on record on 7 August 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

objections to provisional assessment after s.135 disconnection

HOLDING

Where a provisional assessment has been issued and served after disconnection under Section 135 of the Electricity Act, 2003, clause 8.1(b) of the U.P. Electricity Supply Code, 2005 is the statutory forum for objections and occupies that field. The writ court will not decide the assessment on merits and will instead direct a time-bound reasoned final order, with supply restorable on deposit of 50% of the provisional amount pending that determination. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

A consumer disconnected in Section 135 proceedings and served with a provisional assessment must pursue objections under clause 8.1(b) of the U.P. Electricity Supply Code, 2005, which occupies that field.. ¶ 1

opportunity-before-final-assessment

A consumer disconnected in Section 135 proceedings and served with a provisional assessment must pursue objections under clause 8.1(b) of the U.P. Electricity Supply Code, 2005, which occupies that field.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PROVISIONAL ASSESSMENT DATED 02.05.2019 AND THE UNDERLYING SECTION 135 ALLEGATION

Left to the assessing authority to decide on objections by a reasoned speaking order, after which a final assessment bill is to be prepared. ¶ 1

